Tentative Rulings
September 3, 2026
Department S-17
Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (https://www.sb-court.org/divisions/civil/civil-tentative-rulings) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8715 in advance of the hearing. If all parties submit on a tentative ruling, it will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the Department if you need this form. Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

---

9. *Ornelas v. R-2 Contractors, Inc., et al,* Case No. CIVSB2504507
Defendants' Motion for Summary Judgment
9/3/26, 9:00 a.m., Dept. S-17

Tentative Rulings

<u>*As to Plaintiff's Evidentiary Objection:*</u> The Court would **OVERRULE**.

<u>*As to the Motion:*</u> The Court would **DENY**.

Case Summary

This is a personal injury and premises liability case. Plaintiff contends that he was injured in February of 2023 after his motorcycle fell into an unmarked trench near the US-395 in Boron. As such, he filed suit against the various Defendants R-2 Contractors, Inc. (R-2); Cupertino Electric, Inc. (Cupertino); Resurgence Capital, LLC; Resurgence Financial, LLC; Resurgence I Energy Storage, LLC; Resurgence Solar I, LLC; Resurgence Solar II, LLC; Nextera Blythe Solar Energy Center, LLC; Nextera Energy Marketing, LLC; Nextera Energy Operating Services, LLC; Nextera Energy Project Management, LLC; Nextera Energy Resources Development, LLC; Nextera Energy Solutions, LLC; Nextera Home, LLC; and Nextera Mobility, LLC. He asserts claims for (1) negligence; (2-4) negligent hiring, supervision, and retention; and (5) premises liability.

The complaint indicates Defendants were negligent in, essentially, the ownership, management, operation, control, maintenance, and supervision of the property, which was in a known dangerous condition. Or, as the causes of action suggest, Defendants were purportedly negligent in the hiring, supervision, or retention of employees.

Statement of Law

Summary judgment is proper where there is no triable issue as to any material fact and the moving party is entitled to judgment as a matter of law. (Code Civ. Proc., § 437c(c).) The analysis requires three steps: First, the court must identify the issues framed within the pleading. (*AARTS Productions, Inc. v. Crocker National Bank* (1986) 179 Cal.App.3d 1061, 1064-1065.) Second, it must determine whether the moving party has established facts sufficient to negate the claim and justify a judgment in movant's favor. (*Ibid.*) Third, and finally, when a summary judgment motion, as a prima facie matter, justifies a judgment, the court must determine whether the opposition demonstrates the existence of a triable issue of material fact. (*Ibid.*) The court's sole function on a motion for summary judgment is issue finding, not issue determination. (See *Zavala v. Arce* (1997) 58 Cal.App.4th 915, 926.)

Presented Facts

The facts presented with the motion indicate that at the time of the accident, Plaintiff was on his way to work at the Boron job site. (UF, 3.) Plaintiff was a member of a union that would send him job opportunities, and his paychecks also said "Cupertino," an apparent reference to Cupertino Electric. (UF, 4.) Cupertino was a subcontractor of R-2, and R-2 was hired by Defendants, which own and operate the property. (Opening Brief, 2:15-18; see also UF, 5.)

Defendants further contend Plaintiff further received all of his directions regarding how to do his job, how to check in, and how to check out exclusively from his employer and its supervisors. (UF, 8.)

Defendants did not give Plaintiff instructions on how to perform his work at the jobsite nor did they direct, supervise, or control the manner or means by which he performed his work at the premises. (UF, 9.) Plaintiff also attended safety meetings at the job site, though he does not know who led them, but the meetings were for all workers at the site regardless of the union or company they were with. (UF, 11.)

The facts also indicate Plaintiff was required to “punch in” each day before he started work and was required to check in first at a guard shack and then with his work group. He had checked in already at the shack and was in the process of traveling to meet his group when the incident occurred. (UF, 6.) After the incident, his medical visits were through the workers compensation insurance and his workers compensation claim has been resolved. (UF, 10.) Finally, Defendants indicate Plaintiff testified he was unaware of having any conversations with “a company called NextEra.” (UF, 7.)

Opposing Facts – In connection with the opposition, Plaintiff indicates that the trench was unmarked, and Defendants were the owners and operators of the property and hired R-2 to perform the work. The trench was not present the day before the incident and was dug sometime within the preceding 24 hours. The path on which the trench was located was also the only route by which Plaintiff could reach his job, and he had traveled the same route in the dark on numerous occasions over the preceding 2-3 months. (UF, 1-2 & 4-7.) Defendants have not addressed whether they knew or should have known about the trench. (UF, 9.) Finally, Plaintiff notes that in the separate statement Defendants wrote “cite additional evidence” at times to support a factual assertion; the moving papers inconsistently state Plaintiff was an employee of R-2 and Cupertino; and discovery is ongoing. (UF, 10-12.)

Analysis

Now, through the pending motion, all the Defendants, with the exception of R-2 and Cupertino (referred to herein as “Defendants” for purposes of this motion), seek summary judgment, or in the alternative summary adjudication as to each claim against them, on the grounds that the claims are barred by the *Privette* doctrine because Plaintiff was employed by R-2 as an independent contractor; he was covered by R-2’s workers compensation insurance; and the Defendants did not retain control over the manner or means of R-2’s work.

Generally speaking, under the “peculiar risk” doctrine, “a private landowner who engages in inherently dangerous activity on his land should not be able to insulate himself from liability for injuries to others simply by hiring an independent contractor.” (*Privette v. Superior Court* (1993) 5 Cal.4th 689.) However, in *Privette*, the California Supreme Court rejected the application of the peculiar risk doctrine to suits by employees of a contractor as against the landowner: “[A]pplying the peculiar risk doctrine to the independent contractor’s employees would illogically and unfairly subject the hiring person, who did nothing to create the risk that caused the injury, to greater liability than that faced by the independent contractor whose negligence caused the employee’s injury.” (*Toland v. Sunland Housing Group, Inc.* (1998) 18 Cal.4th 253, 256 [summarizing *Privette*]; *Privette, supra,* 5 Cal.4th at pp. 696-699.)

There are, however, exceptions to *Privette*: In *Hooker v. Dept. of Transportation* (2002) 27 Cal.4th 198, the California Supreme Court held that an independent contractor’s employee can sometimes recover in tort from the contractor’s hirer if the hirer retained control of the contracted work and “‘fail[ed] to exercise his control with reasonable care . . . .’” (*Hooker, supra,* 27 Cal.4th at p. 206.) The Supreme Court in *Hooker* concluded that the hirer cannot be liable “merely because [it] retained the ability to exercise control over safety at the worksite," but it is fair to make the hirer liable if it "exercised the control that was retained in a manner that affirmatively contributed to the injury of the contractor's employee." (*Id.* at p. 210.) Under that standard, a general contractor contributes to an unsafe procedure or practice by its affirmative conduct, or by its omission, where the general contractor "'is actively involved in, or asserts control over, the manner of performance of the contracted work," or "if the hirer promises to undertake a particular safety measure," and the negligent failure to do so leads to an employee injury. (*Id.* at pp. 212, 215.)

Perhaps more relevant is *Kinsman v. Unocal Corp.* (2005) 37 Cal.4th 659. In *Kinsman* an employee of an independent contractor that built and dismantled scaffolding used by other trades was exposed to airborne asbestos produced by those trades. In another exception to the *Privette* doctrine, the Supreme Court found that "where there is a known safety hazard on a hirer's premises that can be addressed through reasonable safety precautions on the part of the independent contractor, . . . the hirer generally delegates the responsibility to take such precautions to the contractor and is not liable to the contractor's employee if the contractor fails to do so." (*Kinsman, supra,* 37 Cal.4th at pp. 673-674.) The Supreme Court went on to hold that "the hirer as landowner may be independently liable to the contractor's employee, even if it does not retain control over the work, if: (1) it knows or reasonably should know of a concealed, preexisting hazardous condition on its premises; (2) the contractor does not known and could not reasonably ascertain the condition; and (3) the landowner fails to warn the contractor." (*Id*. at p. 675.)

In this case, Defendants have not introduced any evidence indicating they did not know about, or should not have known about, the trench. Nor is there any evidence indicating Defendants warned the contractors about the condition. It is also not clear whether the contractors knew about the condition through other means or who even caused the trench to be dug and when, at least based on the moving papers. Defendants do not even suggest they did not dig the trench themselves.

To the extent Defendants knew about the trench, but their contractors did not, *Privette* does not apply because Defendants did not provide the contractors with the "critical information" they would need to fulfill their responsibilities. Furthermore, to the extent the trench was dug overnight and to the extent the incident happened in the morning on an unlit road, then for that period of time at least the trench would appear to be "concealed" given the darkness and how new and unknown the trench purportedly was. (Ornelas Depo. at p. 46 [no trench the "day" prior]; 117 [merely speculating about who dug the trench]; pp. 37, 110 and 113 [indicating it was dark and the roadway was not lit at the time]; see also Additional Fact No. 6 [roadway was the only way to reach the jobsite].)

To the extent they had knowledge of the trench but the contractors or Plaintiff did not, would have a duty of care and it was Defendants obligation to disprove that negligence theory. (*Kinsman v. Unocal Corp.* (2005) 37 Cal.4th 659, 674, as modified (Mar. 1, 2006) ["when the landowner knows or should know of a concealed hazard on its premises, then under ordinary premises liability principles, the landowner may be liable for a resultant injury to those employees"].) Defendants also fail to address whether the trench, even if an "obvious hazard, for which no warning is necessary," still gave rise to a duty to "remedy the hazard because knowledge of the hazard is inadequate to prevent injury." (*Kinsman v. Unocal Corp*. (2005) 37 Cal.4th 659, 674, as modified (Mar. 1, 2006); *Johnson v. The Raytheon Co., Inc*. (2019) 33 Cal.App.5th 617, 631-632.)

*** *** ***

11. *Rosas-Higareda v. R&B Wholesale Distributors, Inc., et al,* Case No. CIVSB2432301
Plaintiff's Motion for Approval of PAGA Settlement
9/3/26, 9:00 a.m., Dept. S-17

Tentative Ruling

The Court's tentative is to **GRANT**.

Standards

Settlements under the Private Attorneys General Act (PAGA) at Labor Code sections 2698, et seq., do not require preliminary approval. The court must find, however, that the PAGA settlement is "fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws." (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 77.) The court must find that the plaintiff "has adequately represented the state's interests, and hence the public interest." (*Id.* at p. 89.) The LWDA must be notified of the settlement and be given an opportunity to object.

The Court may look to parallel class action guidelines to determine what is "fair, adequate and reasonable." (*Kullar v. Foot Locker Retail* (2008) 168 Cal.App.4th 116, 126.) In that analysis, the court has "broad discretion in making this determination." (*In re Microsoft I-V Cases* (2006) 135 Cal.App.4th 706, 723.) Relevant factors may include "the strength of the plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintain class action status through trial, the amount offered in settlement, the extent of discovery completed and the stage of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction of the class members to the proposed settlement." (*Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801.) This list of factors "is not exhaustive and should be tailored to each case." (*Ibid.*) The court may "engage in a balancing and weighing of factors depending on the circumstances of each case." (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 245 [overruled on other grounds].)

"Although the court gives regard to what is otherwise a private consensual agreement between the parties, the court must also evaluate the proposed settlement agreement with the purpose of protecting the rights of the absent class members who will be bound by the settlement." (*Wershba, supra,* 91 Cal.App.4th at p. 245, quoting *Dunk, supra,* 48 Cal.App.4th at p. 1801.) "The court must therefore scrutinize the proposed settlement agreement to the extent necessary to 'reach a reasoned judgment that the agreement is not the product of fraud or overreaching by, or collusion between, the negotiating parties, and that the settlement, taken as a whole, is fair, reasonable and adequate to all concerned.'" (*Ibid.*, quoting *Officers for Justice v. Civil Service Com'n* (9th Cir. 1982) 688 F.2d 615, 625.)

The settlement is entitled to "a presumption of fairness . . . where: (1) the settlement is reached through arm's-length bargaining; (2) investigation and discovery are sufficient to allow counsel and the court to act intelligently; (3) counsel is experienced in similar litigation; and (4) the percentage of objectors is small." (*Kullar v. Foot Locker Retail* (2008) 168 Cal.App.4th 116, 128, quoting *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1802.)

In this case, the Court finds the proposed PAGA settlement to fair, reasonable, and adequate. The amount of the settlement appears to be appropriate given the strength of Plaintiff's case and the risks involved in litigation. Adequate discovery and investigation occurred. There is no evidence of fraud or collusion, and PAGA counsel are well-qualified to represent the aggrieved employees. The Court is unaware of any disqualifying features for the representative.

The Proposed Settlement

Here, Plaintiff originally submitted his letter to the LWDA on October 14, 2024. He filed this case initially as a wage-and-hour class action on October 24, 2024. After the exhaustion of administrative remedies, he filed the operative First Amended Complaint (FAC) on December 23, 2024, alleging violations related to (1) overtime; (2) meal periods; (3) rest breaks; (4) minimum wages; (5) final pay; (6) wage timeliness; (7) accurate wage statements; as well as (8) violation of the unfair competition law (UCL) and (9) civil penalties pursuant to the Private Attorneys General Act (PAGA). The UCL and PAGA claims are underpinned by the purported wage-and-hour violations. Importantly, Plaintiff dismissed the class claims on April 23, 2025. (Order, signed April 23, 2025.) Thus, the matter proceeded thereafter as a PAGA-only matter.

The parties have engaged in robust discovery, including the provision of a 20% sampling of time and payroll records. (Davis Decl., ¶¶18-20; Settlement, ¶41.) Thereafter, on November 19, 2025, the parties agreed to go to mediation with Tagore Subramaniam, an experienced neutral. (Davis Decl., ¶21; Settlement, ¶41.) The parties reached a settlement in the abstract, and they executed a Settlement by February of 2026. (Davis Decl., Exh. 2 [Settlement].) The Settlement covers all hourly, non-exempt employees who worked for Defendants in California during the period from October 20, 2023, through January 18, 2026. (Settlement, ¶22.) Notice of the Settlement was sent to the LWDA on June 25, 2026. (Davis Decl., Exh. 3.)

The settlement proposed the following terms: Defendant will pay a gross settlement amount of $360,000.00, from which will be deducted (1) $120,000.00 for attorneys' fees (1/3rd the gross); (2) $18,465.10 for litigation costs; (3) $7,500.00 for plaintiff's enhancement fee; and (4) $4,750.00 for claims administration by Phoenix Settlement Administrators. Thus, there would be a net settlement of <u>$209,284.90,</u> with 65%, or $136,035.19, going to the LWDA, and 35%, or $73,249.72, paid directly to the aggrieved employees on a pro rata basis determined by number of applicable pay periods worked. Notably, given the estimated 245 aggrieved employees, the average PAGA payout to the employees would be $<u>298.98.</u>

The amount of the settlement is appropriate given Class Counsel's analysis of purported exposure [Davis Decl., ¶42] and the strength of plaintiff's case. Importantly, the reduction appears warranted in light of Defendant's various defenses. (See Davis Decl., ¶¶43-56.) Further, the settlement amount is appropriate given the risk of litigation and the risk of appeal even if Plaintiff were successful at trial. (*Ibid.*)

Adequate discovery and investigation occurred. There is no evidence of fraud or collusion. PAGA Counsel are well qualified to represent the class. The settlement was reached through an arms-length negotiation with the assistance of an experienced mediator.

*** *** ***